

MT204, Module- 3

Indian Judicial System

Continued...

- The judiciary is also organized hierarchically. The apex court in this structure is the Supreme Court, situated in New Delhi. Next come is the High Courts. Most of the states have a high court each. A few states share a high court, like Punjab and Haryana. Next in the hierarchy are the District courts and subordinate courts.

Introduction

- In any government, the judiciary is the body concerned with upholding the law. It punishes the guilty and settles the disputes. The judiciary has been given the power and duty to safeguard the basic rights of citizens of India and uphold the supremacy of the constitution. The constitution clearly provides for the independence of judges and separation of the judiciary from the executives.
- The Indian judiciary is single, integrated and unified. It means that if a person is not satisfied with the judgement got in the lower courts, can appeal to a higher court.

The Supreme Court

- The Supreme Court is the highest court in India with the chief justice as its head. At present there are 33 judges in the Supreme Court. The total strength is 34 judge including the chief justice of the court. The strength of judges in this court can be changed by an act of Parliament.
- The chief justice is appointed by the president of India. The other judges are appointed on the recommendation of the chief justice, by the president. So, the legislature or executive cannot interfere in the working of judiciary.

Qualifications & Term of office

- To become a judge of the Supreme Court, besides being an Indian citizen, a person must be an advocate of a High Court with a minimum of ten years experience, or a High Court judge with at least five years experience, or a distinguished jurist i.e., expert in law.
- The retirement age of the judges of the Supreme Court is 65 years. But if found guilty of misuse of authority, the judge may be impeached.

Powers & functions

- There are three types of jurisdiction of Supreme Court:
- Original jurisdiction
- Appellate jurisdiction
- Advisory jurisdiction
- **Original jurisdiction-** The Supreme Court has the authority to hear certain types of cases for the first time like- (i) cases that involve disputes over the interpretation of the constitution can be directly brought to the Supreme Court. (ii) cases dealing with infringement of fundamental rights. (iii) disputes that arise between the central

Continued...

- Government and one or more state governments. (iv) disputes between two state governments or more.
- **Appellate jurisdiction**- It is the highest court of appeal in civil and criminal cases. It can hear appeals against judgements rendered by the High Court. The Supreme Court then hear the case and give the final judgement.
- **Advisory jurisdiction**- This court advises the president and the council of ministers, on matters of constitutional issues or issues of public importance. But the advice is not binding on the president

Other functions

- **Judicial Review-** The Supreme Court is the defender of our fundamental rights. So, it has the power to issue writs. The court can order compensation to the victims and punishment to the offenders. Hence, any law or policy made by the government that is not in accordance with the text or intention of the constitution can be declared as illegal. This is known as judicial review. \
- **Contempt of Court-** The supreme Court has the power to punish anyone for contempt of any law court in India, including itself.

Public Interest Litigation (PIL)

- Any citizen of India can go to the court if the interest of the public has been affected by the deeds of government. This is known as public interest litigation. The courts then study the case and if necessary, issue orders to check the malpractices of public officials and prevent the misuse of power by the government.

High Court

- The High Court is the apex court in the state. The chief Justice of High Court is appointed by the president on the recommendation of, and in consultation with, the chief justice of India and the governor of the state concerned. The other judges are appointed by the president who consults the chief justice of the concerned High Court and the governor of the state.

Qualification & Retirement

- To be a High Court judge, a person must be a citizen of India, a High Court advocate with at least ten years of experience, or a judicial officer with at least ten years experience.
- A High Court judge retires at the age of 62 years. He or she can also face impeachment on charges of misconduct as is the case with judges of the Supreme Court.

Powers & functions of High Court

- The High Court has **original jurisdiction** over cases involving the enforcement of fundamental rights. It can issue writs.
- It has **appellate jurisdiction** over both civil and criminal cases. It hears appeals against the decisions taken by the lower courts.
- Its **supervisory jurisdiction** involves supervising the activities of the lower courts.
- It also is a **court of record**.
- The High Court thus deals with all cases that pertain to the jurisdiction of that state, both civil and criminal.